

YOUR COMPLETE GUIDE TO

QUESTIONS TO ASK YOUR LAWYER

Pakistan Family Law — Real Cases & Scenarios

Marriage • Divorce • Custody • Maintenance • Inheritance • Dowry

MARRIAGE & NIKAH

DIVORCE & KHULA

CHILD CUSTODY

MAINTENANCE

INHERITANCE

DOWRY & MEHR

WORKPLACE

GENERAL ADVICE

60+

Questions & Scenarios

8

Legal Categories

15+

Real-Life Case Studies

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Laws per Scenario

HOW TO USE THIS GUIDE

This guide gives you **real-life scenarios** and the **exact questions** to ask a lawyer in Pakistan for each situation. Each scenario tells you: what questions to raise, which law applies, and what steps to take first. Take this guide to your lawyer appointment or use it to understand your situation before going to court.

How each scenario is organized: (1) The situation / what happened. (2) Questions to ask your lawyer. (3) The specific Pakistani law that applies. (4) First steps you should take.

#	Category	Scenarios Covered
A	Marriage & Nikah	Unregistered marriage, forced marriage, court marriage, Mehr
B	Divorce & Khula	Husband's talaq, wife's Khula, verbal divorce, mutual divorce
C	Child Custody	Who gets custody, visitation, international abduction, school
D	Maintenance (Nafaqah)	Wife's maintenance, children's expenses, husband refuses to pay
E	Inheritance (Wirasat)	Father died without will, daughter denied share, orphaned grandchild
F	Dowry & Mehr	Dowry demands, Mehr not paid, gifts not returned after divorce
G	Workplace Harassment	Boss harassment, wrongful termination, maternity rights
H	General / Emergency	Domestic violence, missing husband, police complaint, restraining order

■ A. MARRIAGE & NIKAH SCENARIOS

Muslim Family Laws Ordinance 1961 (S.5, S.6) | Child Marriage Restraint Act 1929

SCENARIO A-1	My Nikah was done but never registered with the Union Council	IMPORTANT
Questions to Ask Your Lawyer: Q: Is my marriage legally valid even though it was never registered? Q: What are the penalties for not registering a Nikah under MFLO 1961? Q: Can I register it now after years have passed? What documents do I need? Q: If my husband denies the marriage, what evidence is valid in court? Q: Can my children be considered legitimate if the Nikah was unregistered?	Applicable Laws: • <i>Muslim Family Laws Ordinance 1961, S.5 — registration compulsory</i> • <i>Failure to register: fine + imprisonment up to 3 months</i> • <i>Nikahnama evidential weight — Family Courts Act 1964</i> • <i>Qanun-e-Shahadat Order 1984 — oral evidence of witnesses valid</i>	What You Should Do: 1. Collect all evidence: witnesses (walis), Nikahnama if any, photos, WhatsApp proof 2. Apply to Union Council for late registration — bring 2 male witnesses 3. File declaration suit in Family Court if husband denies marriage 4. Ask lawyer about declaratory decree under Specific Relief Act 1877
SCENARIO A-2	My parents are forcing me to marry someone I did not consent to	URGENT
Questions to Ask Your Lawyer: Q: Is a marriage without my free consent legally valid in Pakistan? Q: What is the offence of forced marriage under PPC and what is the punishment? Q: Can I go to court BEFORE the marriage happens to stop it? Q: If I am already married under force, how do I get it annulled? Q: Can I marry someone of my own choice without my wali's permission?	Applicable Laws: • <i>PPC Section 498B — Forced Marriage — 3 to 7 years imprisonment</i> • <i>Muslim Family Laws Ordinance 1961 — free consent required for Nikah</i> • <i>Family Courts Act 1964 — injunction to stop forced marriage</i> • <i>Constitutional Article 9 + 25 — right to life and equality</i> • <i>Saima Waheed Case (PLD 1997 Lah 331) — adult woman can marry without wali</i>	What You Should Do: 1. Contact a lawyer or Aurat Foundation / Dastak shelter immediately 2. File habeas corpus petition in High Court if detained 3. File injunction in Family Court to restrain family before Nikah 4. Lodge FIR under PPC 498B at local police station
SCENARIO A-3	My husband wants to marry a second wife (polygamy) without my knowledge	URGENT
Questions to Ask Your Lawyer: Q: Is my husband legally allowed to marry another woman without my permission? Q: What happens if he marries without Arbitration Council permission? Q: Is his second marriage void? What is the penalty? Q: Can I file for divorce because of his illegal second marriage? Q: What financial rights do I have if he takes a second wife?	Applicable Laws: • <i>Muslim Family Laws Ordinance 1961, S.6 — prior permission from Arbitration Council required</i> • <i>Penalty: imprisonment up to 1 year + fine up to PKR 5,000 + void second marriage</i> • <i>MFLO 1961 S.6(5) — first wife has right to dissolve marriage</i> • <i>Dissolution of Muslim Marriages Act 1939, S.2 — ground for dissolution</i>	What You Should Do: 1. File complaint with Chairman of Union Council immediately 2. File application for dissolution of marriage under DMMA 1939, S.2 3. Apply to Family Court for maintenance order 4. Document: any marriage certificates, social media, witnesses of second Nikah

TIP: Always check your Nikahnama for any conditions your husband agreed to — such as his not taking a second wife, or your right to divorce (Talaq-i-Tafweez). These are legally binding.

■ B. DIVORCE & KHULA SCENARIOS

MFLO 1961 S.7 | Dissolution of Muslim Marriages Act 1939 | Family Courts Act 1964

SCENAR IO B-1	My husband said 'Talaq Talaq Talaq' verbally — are we divorced?	URGENT
Questions to Ask Your Lawyer: Q: Is a verbal triple Talaq legally effective in Pakistan? Q: What is the required procedure for Talaq to be legally valid? Q: What happens during the 90-day notice period — am I still married? Q: Am I entitled to maintenance during the Iddat period? Q: What if my husband refuses to go through the Union Council process?	Applicable Laws: • <i>Muslim Family Laws Ordinance 1961, S.7 — Talaq must be in WRITING</i> • <i>Written notice must be sent to Chairman of Union Council</i> • <i>Copy of notice must be given to wife</i> • <i>Talaq effective after 90 days from notice (not verbal pronouncement)</i> • <i>Verbal talaq alone is legally INVALID — husband not divorced</i>	What You Should Do: 1. Do NOT consider yourself divorced based on verbal words alone 2. Ask lawyer: has any written notice been filed with Union Council? 3. Continue claiming maintenance during the 90-day period 4. If husband files notice, you have 90 days for reconciliation attempt 5. After 90 days with no reconciliation, divorce becomes final
SCENAR IO B-2	I (wife) want a divorce but my husband refuses to give Talaq	IMPORTANT
Questions to Ask Your Lawyer: Q: What are my rights to get a divorce without my husband's agreement? Q: What is Khula — do I have to return my Mehr to get divorced? Q: What grounds can I use to file for judicial dissolution of marriage? Q: How long does the Khula/dissolution process take in Family Court? Q: Can I get a no-fault divorce? What will I lose financially?	Applicable Laws: • <i>Dissolution of Muslim Marriages Act 1939, S.2 — 10 grounds for judicial divorce</i> • <i>Family Courts Act 1964 — exclusive jurisdiction of Family Court</i> • <i>Khula (PLD 1959 Lahore 566) — court can grant even without grounds</i> • <i>Balqis Fatima Case: no-fault divorce possible; wife may waive Mehr</i> • <i>Khurshid Bibi Case PLD 1967 SC 97 — Supreme Court precedent</i>	What You Should Do: 1. File suit for dissolution/Khula in Family Court of your district 2. Bring: original Nikahnama, CNIC, children's B-forms, any evidence 3. Court will attempt reconciliation (mandatory under Family Courts Act S.10) 4. If no reconciliation, court will decree Khula — usually 3-6 months 5. Ask lawyer: can I keep my Mehr given husband's behavior?
SCENAR IO B-3	My husband left for abroad 4 years ago and has no contact with me	IMPORTANT
Questions to Ask Your Lawyer: Q: Can I file for divorce if my husband's whereabouts are unknown? Q: After how many years of desertion can I get a dissolution? Q: Who can I file the case against if I don't know where he is? Q: Can I remarry after getting dissolution under these circumstances? Q: What happens to my maintenance and my children's expenses during this time?	Applicable Laws: • <i>Dissolution of Muslim Marriages Act 1939, S.2(i) — husband whereabouts unknown 4+ years</i> • <i>DMMA 1939, S.2(ii) — failure to maintain wife for 2+ years</i> • <i>Family Courts Act 1964 — court proceeds even if defendant untraceable</i> • <i>Publication of notice (Gazette) allowed for absent defendant</i>	What You Should Do: 1. File dissolution suit in Family Court in your area of residence 2. Court will issue notice; if husband cannot be found, notice published 3. After prescribed period, court grants dissolution decree 4. Decree-in-absentia is valid — you can remarry after Iddat 5. Also file for maintenance arrears and future children's expenses

SCENARIO B-4	My husband is physically abusive / cruel to me	URGENT
Questions to Ask Your Lawyer: Q: Is cruelty or domestic violence a valid ground for divorce in Pakistan? Q: What evidence do I need to prove cruelty in court? Q: Can I file both a criminal case (FIR) and a divorce case simultaneously? Q: Is there a protection order I can get immediately? Q: Will domestic violence affect child custody decisions?	Applicable Laws: • <i>DMMA 1939, S.2(viii) — cruelty is a valid ground for dissolution</i> • <i>PPC S.337 (hurt) / S.354 (assault) — criminal liability of husband</i> • <i>Punjab Protection of Women Against Violence Act 2016 (provincial)</i> • <i>Family Courts Act 1964 — family court has criminal jurisdiction too</i> • <i>Prevention of Anti-Women Practices Act 2011</i>	What You Should Do: 1. Go to hospital immediately — get medico-legal certificate (MLC) 2. Lodge FIR at police station under PPC S.337 or S.354 3. Apply for Protection Order from Family Court or Magistrate 4. File dissolution suit on cruelty grounds with MLC as evidence 5. Contact Dastak, Panah, or Rozan shelter if you need immediate safety

WARNING: If you are in immediate danger, call 1099 (Punjab Women Helpline) or 15 (Police). You do not need a lawyer to file an FIR for assault — go to the police station directly.

■ C. CHILD CUSTODY & GUARDIANSHIP SCENARIOS

Guardians & Wards Act 1890 | Family Courts Act 1964 | Hague Convention

SCENAR IO C-1	After divorce, who gets custody of my son (age 5) and daughter (age 12)?	IMPORTANT
Questions to Ask Your Lawyer: Q: What are the custody rules for sons and daughters under Pakistani law? Q: At what age can my son go to his father? And my daughter? Q: Does my remarriage automatically mean I lose custody? Q: What does 'welfare of the child' mean in legal terms — how do courts decide? Q: Can the child choose which parent to live with?	Applicable Laws: • <i>Guardians and Wards Act 1890, S.17 — welfare of minor paramount</i> • <i>Hanafi law (applied by courts): son with mother until age 7; daughter until puberty</i> • <i>Family Courts Act 1964, S.5 Schedule — custody and visitation in Family Court</i> • <i>Mother's remarriage: prima facie loses custody but court applies welfare test</i>	What You Should Do: 1. File for custody in Family Court — bring school records, medical records 2. Document your living situation: stable home, income, childcare arrangements 3. Ask court for interim custody order immediately if child is with other parent 4. Visitation schedule for non-custodial parent should be agreed or ordered by court 5. Ask lawyer: can child's preference be recorded given daughter's age (12)?
SCENAR IO C-2	My ex-spouse has taken my child to another country without my permission	URGENT
Questions to Ask Your Lawyer: Q: Is taking a child abroad without court permission legal in Pakistan? Q: What is the Hague Convention and does it apply here? Q: Can I stop my child from leaving Pakistan at the airport? Q: What court do I approach and how quickly can I get an order? Q: What if the other country has different custody laws?	Applicable Laws: • <i>Guardians and Wards Act 1890 — Pakistani courts have jurisdiction over minors</i> • <i>Family Courts Act 1964, S.5 Schedule 6A (SRO 980/2017) — Hague Convention</i> • <i>PPC S.361 — kidnapping from lawful guardianship — criminal offence</i> • <i>Immigration Exit Control List — minor can be placed on exit control</i>	What You Should Do: 1. IMMEDIATELY file application in Family Court to prevent departure 2. Ask lawyer to write to FIA to place child's name on Exit Control List 3. File criminal complaint under PPC S.361 at police station 4. If child already abroad: file Hague Convention application through Foreign Ministry 5. Bring: child's passport copy, your custody order if any, birth certificate
SCENAR IO C-3	My ex refuses to let me see my children despite court order	IMPORTANT

Questions to Ask Your Lawyer: Q: What can I do if the custodial parent is violating my visitation rights? Q: Can I file contempt of court against my ex for breach of custody order? Q: Can the custody order be changed if the other parent repeatedly violates it? Q: Is there any criminal liability for denying court-ordered access? Q: Can I take my children away by force to enforce my visitation?	Applicable Laws: • <i>Family Courts Act 1964 — contempt jurisdiction of court</i> • <i>Guardians and Wards Act 1890, S.17 — court can vary guardianship order</i> • <i>CrPC — contempt of court punishable by fine / imprisonment</i> • <i>Habeas corpus petition — High Court can order production of child</i>	What You Should Do: 1. Do NOT use force — this creates new legal problems for you 2. File contempt application in the same Family Court that issued the order 3. File variation application to change custody arrangement due to non-compliance 4. Keep a dated diary of every missed visitation as evidence 5. If child is being hidden, file habeas corpus in High Court
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■ D. MAINTENANCE (NAFAQAH) SCENARIOS

MFLO 1961 S.9 | Family Courts Act 1964 |
Maintenance Ordinance 1982

SCENAR IO D-1	My husband has stopped paying for household expenses and children's school fees	URGENT
Questions to Ask Your Lawyer: Q: What is my legal right to maintenance during marriage under Pakistani law? Q: Can I file for maintenance even without filing for divorce? Q: How is the maintenance amount calculated — is there a fixed formula? Q: What if my husband says he has no income? How do I prove otherwise? Q: How is the maintenance decree enforced if he still refuses to pay?	Applicable Laws: • <i>Muslim Family Laws Ordinance 1961, S.9 — Arbitration Council can fix maintenance</i> • <i>Family Courts Act 1964, Schedule — maintenance within exclusive Family Court jurisdiction</i> • <i>Maintenance Ordinance 1982 — maintenance decree executable as arrears of land revenue</i> • <i>Children's maintenance: father's absolute obligation under Islamic law + Pakistani courts</i>	What You Should Do: 1. File maintenance application in Family Court — no need to file for divorce first 2. Apply for interim maintenance immediately — courts often grant this within days 3. Collect evidence of husband's income: bank statements, business, property, lifestyle 4. If he claims no income, court can draw adverse inference from lifestyle 5. Enforcement: decree executed by court as land revenue — his assets can be attached
SCENAR IO D-2	My divorced husband is not paying maintenance during my Iddat period	IMPORTANT
Questions to Ask Your Lawyer: Q: Am I entitled to maintenance during Iddat even after divorce? Q: For how long must he pay maintenance post-divorce (for Iddat)? Q: What if I am pregnant at the time of divorce — does maintenance continue? Q: Can I claim outstanding (arrear) maintenance for the months he did not pay? Q: After Iddat ends, who must support me?	Applicable Laws: • <i>Islamic law + Family Courts Act 1964 — Iddat maintenance is husband's obligation</i> • <i>Iddat period: 3 menstrual cycles / 3 months, or until delivery if pregnant</i> • <i>MFLO 1961 S.9 — maintenance application to Arbitration Council or Family Court</i> • <i>Maintenance Ordinance 1982 — arrears recoverable with interest</i>	What You Should Do: 1. File for maintenance in Family Court as soon as divorce notice is received 2. Iddat maintenance is a legal right — even if you have income of your own 3. If pregnant, maintenance continues until child is born and beyond for child 4. File for arrear maintenance — court can award unpaid months retrospectively 5. After Iddat: file for children's maintenance; your own maintenance ends

■ E. INHERITANCE (WIRASAT) SCENARIOS

Muslim Personal Law (Shariat) Application Act 1962 | PPC S.498A | MFLO 1961 S.4

SCENAR IO E-1	My father died without leaving a Will — my brothers say daughters get nothing	IMPORTANT
Questions to Ask Your Lawyer: Q: What is my legal share of inheritance as a daughter under Islamic law? Q: Can my brothers legally exclude me from inheritance? Q: What is PPC Section 498A and is denying my inheritance a criminal offence? Q: What court do I go to — civil court or criminal court? Q: What is the time limit to file an inheritance claim?	Applicable Laws: • <i>Muslim Personal Law (Shariat) Application Act 1962 — Shariat applies; daughter's share is 1/2 if only daughter, or 2/3 combined for daughters</i> • <i>PPC Section 498A — deprivation of inheritance: 5-10 years imprisonment + PKR 1 million fine</i> • <i>Succession Act 1925 — for non-Muslims</i> • <i>Civil Courts Ordinance — suit for partition and declaration of shares</i> • <i>Limitation Act 1908 — time limits for suits</i>	What You Should Do: 1. File criminal complaint under PPC S.498A at police station 2. File civil suit for declaration of your inheritance share in civil court 3. File partition suit to divide the estate (property, money, assets) 4. Get mutation (intiqal) stopped at revenue office if brothers are transferring property 5. Collect: property documents, death certificate, family tree (shajra)
SCENAR IO E-2	My son died before my husband. Do my grandchildren get my husband's estate?	IMPORTANT
Questions to Ask Your Lawyer: Q: Under classical Islamic law, do grandchildren inherit if their parent has died? Q: What does MFLO 1961 Section 4 say about orphaned grandchildren? Q: What share do the grandchildren get compared to surviving uncles/aunts? Q: Do I need to go to court to enforce this right for my grandchildren? Q: What documents do I need to prove the grandchildren's entitlement?	Applicable Laws: • <i>Muslim Family Laws Ordinance 1961, S.4 — orphaned grandchildren inherit per stirpes</i> • <i>MFLO 1961 S.4: grandchildren receive what their pre-deceased parent would have received</i> • <i>This overrides the classical Hanafi position that blocks grandchildren in presence of uncles</i> • <i>Muslim Personal Law (Shariat) Application Act 1962</i>	What You Should Do: 1. MFLO S.4 is clear — grandchildren's right is statutory law, not discretionary 2. File partition suit including grandchildren as heirs with their entitlement calculated 3. Documents needed: son's death certificate, grandchildren's birth certificates, grandfather's death certificate 4. Revenue authorities (patwari) must record mutation in grandchildren's favour 5. If uncles resist, file civil suit for declaration + partition

■ F. DOWRY, MEHR & BRIDAL GIFTS SCENARIOS

Dowry & Bridal Gifts (Restriction) Act 1976 | MFLO 1961 S.10 | Family Courts Act 1964

SCENARIO F-1	My husband's family demanded excessive dowry and is now harassing me for more	URGENT
Questions to Ask Your Lawyer: Q: Is demanding dowry a criminal offence in Pakistan? Q: What is the legal limit on dowry under the 1976 Act? Q: Can I file both civil and criminal cases simultaneously? Q: Are my bridal gifts (jahez) legally my property even after divorce? Q: If I leave the house, can I take my dowry items with me?	Applicable Laws: • <i>Dowry and Bridal Gifts (Restriction) Act 1976 — demanding dowry: 6 months imprisonment</i> • <i>MFLO 1961 — Nikahnama lists bridal gifts; these are wife's absolute property</i> • <i>PPC S.406 — criminal breach of trust if husband retains wife's property</i> • <i>Family Courts Act 1964 — dower recovery within exclusive Family Court jurisdiction</i> • <i>PPC S.498B — forced marriage; S.498C — marriage with Quran</i>	What You Should Do: 1. File complaint under Dowry Act 1976 at police station 2. File application in Family Court for recovery of dowry/bridal gifts (dower suit) 3. Make detailed list of all items given at marriage (with witnesses if possible) 4. File PPC S.406 case if husband/in-laws have sold or disposed of your items 5. Items listed on Nikahnama are particularly strong evidence of your ownership
SCENARIO F-2	My husband has not paid my Mehr (Mahr/Dower) — even after divorce	IMPORTANT
Questions to Ask Your Lawyer: Q: Is Mehr a legal right or just a religious custom? Q: Can I sue to recover unpaid Mehr in court? Q: What is the difference between prompt (mu'ajjal) and deferred (mu'wajjal) Mehr? Q: Does Mehr affect my right to Khula — will I have to give it back? Q: What if Mehr was not specified in the Nikahnama?	Applicable Laws: • <i>Muslim Family Laws Ordinance 1961, S.10 — Mehr is a legal right, enforceable by court</i> • <i>Family Courts Act 1964, Schedule — dower suits in Family Court</i> • <i>Prompt Mehr: recoverable on demand at any time</i> • <i>Deferred Mehr: payable on dissolution of marriage or death of husband</i> • <i>Mehr-e-Misil: if not specified, court determines by reference to comparable women</i>	What You Should Do: 1. File suit for recovery of Mehr/dower in Family Court immediately 2. Check Nikahnama: is Mehr recorded as prompt or deferred? 3. If husband says Mehr already paid, burden of proof is on him 4. For Khula: courts often allow Khula even without full Mehr return if husband is at fault 5. Court decree for Mehr is executed like a money decree — assets attachable

■ G. WORKPLACE HARASSMENT & WOMEN'S RIGHTS

Protection Against Harassment of Women at the Workplace Act 2010

SCENARIO G-1

My boss is sexually harassing me at work and HR is not helping

URGENT

Questions to Ask Your Lawyer:

- Q: What counts as 'harassment' under the 2010 Workplace Act?
- Q: Does my employer have a legal obligation to have an inquiry committee?
- Q: What is the process for filing a complaint — do I go to court or HR first?
- Q: Can my employer fire me for complaining about harassment?
- Q: What evidence should I collect before filing any complaint?

Applicable Laws:

- *Protection Against Harassment of Women at Workplace Act 2010 (IV of 2010)*
- *Every employer must establish an Inquiry Committee (S.3)*
- *Ombudsperson for Protection Against Harassment (OPAH) — federal body*
- *PPC S.509 — insulting modesty of a woman: criminal offence*
- *Termination for complaining = retaliatory dismissal — separately actionable*

What You Should Do:

1. Document everything: dates, times, what was said/done — in writing
2. First file complaint with your employer's internal Inquiry Committee
3. If no committee exists or inquiry is biased — file with Federal Ombudsperson (OPAH)
4. Save all emails, messages, call logs as evidence
5. File criminal complaint at police station under PPC S.509 simultaneously

■ H. GENERAL & EMERGENCY SCENARIOS

PPC | CrPC | Family Courts Act 1964 | High Court Jurisdiction

SCENARIO H-1	My husband has kicked me out of my own house — I have nowhere to go	URGENT
Questions to Ask Your Lawyer: Q: Do I have a legal right to remain in the matrimonial home during marriage? Q: Can I get a court order to re-enter my home? Q: What is the process if my husband has changed the locks? Q: Am I entitled to rent allowance / alternative accommodation as maintenance? Q: What is the fastest legal step I can take today?	Applicable Laws: • <i>Muslim Family Laws Ordinance 1961, S.9 — lodging is part of nafaqah (maintenance)</i> • <i>Family Courts Act 1964 — maintenance suit includes lodging</i> • <i>Punjab Protection of Women Against Violence Act 2016 — residence order</i> • <i>CrPC S.145 — Magistrate can restore possession of property</i>	What You Should Do: 1. Go to a Magistrate Court and apply for restoration of possession under CrPC S.145 2. File for maintenance in Family Court — specifically include lodging 3. Contact Dastak/Panah shelter for immediate temporary accommodation 4. File for protection order under Provincial Violence Act 5. Bring: CNIC, any document showing you live at that address (utility bills, bank statements)
SCENARIO H-2	My husband has not been home for 2 years — no money, no news	IMPORTANT
Questions to Ask Your Lawyer: Q: After 2 years of no contact, what are my legal options? Q: Can I file for dissolution of marriage due to desertion? Q: How do I maintain myself and my children during this period? Q: Is there any way to trace my husband through legal channels? Q: If he is declared missing, do I inherit automatically?	Applicable Laws: • <i>Dissolution of Muslim Marriages Act 1939, S.2(i) — unknown whereabouts 4 years</i> • <i>DMMA 1939, S.2(ii) — failure to maintain 2 years — dissolution ground</i> • <i>MFLO 1961, S.9 — maintenance order even in absentia</i> • <i>Civil Procedure Code — notice by publication for absent defendant</i>	What You Should Do: 1. File maintenance application in Family Court — court issues notice 2. After 2 years of failure to maintain, you can file dissolution suit right now 3. File FIR for missing person at local police station 4. Court can proceed ex-parte (in husband's absence) after publication of notice 5. Do NOT remarry until dissolution decree is obtained from Family Court
SCENARIO H-3	I want to know what documents I must keep safe to protect my rights	STANDARD
Questions to Ask Your Lawyer: Q: What documents should every married woman in Pakistan keep personally? Q: What documents do I need if I ever file for divorce? Q: What documents are needed for a custody case? Q: What documents prove my inheritance rights? Q: Where should I keep these documents — is a digital copy valid in court?	Applicable Laws: • <i>Qanun-e-Shahadat Order 1984 — documentary evidence in Pakistani courts</i> • <i>Family Courts Act 1964 — required documents for family suits</i> • <i>MFLO 1961 — Nikahnama as primary marriage evidence</i> • <i>Prevention of Electronic Crimes Act 2016 — digital evidence admissible</i>	What You Should Do: 1. MARRIAGE: Nikahnama (original + certified copy), CNIC, Nikah Certificate from Union Council 2. DIVORCE: All MFLO notices, Nikahnama, proof of Mehr paid/unpaid 3. CUSTODY: Children's B-forms, school records, medical records, birth certificates 4. INHERITANCE: Property documents (fard), death certificate, family registration certificate 5. GENERAL: Keep digital copies on Google Drive/email; courts accept certified digital evidence

Muslim Family Laws Ordinance 1961 | Family Courts Act 1964 | Dissolution of Muslim Marriages Act 1939 | Guardians & Wards Act 1890

TIP: The most important document in Pakistani family law is your NIKAHNAMA. Keep the original safe. It contains your Mehr amount, any conditions agreed, and any delegated divorce rights (Talaq-i-Tafweez). Read it carefully with a lawyer.

EMERGENCY HELPLINES & QUICK REFERENCE

Helpline / Organization	Contact	What They Help With
Punjab Women Helpline	1099	Domestic violence, harassment, emergency shelter
Police Emergency	15	Violence, threats, emergencies
Edhi Foundation	115	Shelter, children, emergencies
Dastak Shelter (Lahore)	042-35761999	Shelter for abused women, legal advice
Panah Shelter (Lahore)	042-35423283	Women & children's shelter
National Commission on Status of Women	051-9215741	Policy, rights, referrals
Aurat Foundation	021-35373327	Legal aid, counselling, advocacy
Rozan (Islamabad)	051-2650485	Counselling, GBV support
Legal Aid Society (Karachi)	021-35223890	Free legal representation
Federal Ombudsperson (OPAH)	051-9244232	Workplace harassment complaints
Family Courts (all districts)	Via District Court	Divorce, custody, maintenance, Mehr

QUICK LAW FINDER — What Law Applies to My Problem?

My Problem	Law to Cite to Lawyer
Marriage not registered	MFLO 1961, S.5
Husband married again without permission	MFLO 1961, S.6
Husband pronounced verbal Talaq	MFLO 1961, S.7 — verbal not valid
I want divorce but husband refuses	Dissolution of Muslim Marriages Act 1939, S.2
Husband not paying household expenses	MFLO 1961, S.9 + Family Courts Act 1964
Husband left Pakistan — no contact 4 years	DMMA 1939, S.2(i)
Husband cruel / abusive	DMMA 1939, S.2(viii) + PPC S.337
Who gets custody of my children	Guardians & Wards Act 1890, S.17
Child taken abroad without my consent	Family Courts Act S.5, Sch 6A (Hague Convention)
My Mehr was never paid	MFLO 1961, S.10 + Family Courts Act
Brothers excluding me from inheritance	Muslim Personal Law (Shariat) App. Act 1962 + PPC S.498A
Grandchild denied inheritance	MFLO 1961, S.4
Forced marriage by parents	PPC S.498B
Dowry harassment by in-laws	Dowry & Bridal Gifts Act 1976 + PPC S.406
Workplace sexual harassment	Protection Against Harassment at Workplace Act 2010
Husband kicked me out of home	MFLO 1961 S.9 (lodging) + Punjab Violence Act 2016
Domestic violence	PPC S.337 + Punjab/Sindh Protection of Women Acts

DISCLAIMER: This document is compiled for educational and reference purposes only, based on the laws of Pakistan as of 2024-2025. It does not constitute legal advice. Laws may have been amended. Always consult a qualified practicing lawyer (advocate enrolled with a Pakistan Bar Council) before taking legal action. For free legal aid, contact your district Legal Aid Committee.